Derrick LaMont Beverly
Status: Defendant and Moving Party,
in Propria. Persona Sui Juris
1738 N. Las Palmas Ave.
Los Angeles, CA. 90028
Phone | (213) 998-9798
Email | derniercrilamont@yahoo.com

FILED
Superior Court of California
County of Los Angeles

OCT 20 2025

David W. Slayton, Executive Officer/Clerk of Court
By: F. Ochoa, Deputy

STANLEY-MOSK SUPERIOR COURTHOUSE

OF THE

STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES CENTRAL DISTRICT

FOX NORMANDIE APARTMENTS L.P.; A COMMUNITY OF FRIENDS, (ACOF) AND DOES 1-50,

Plaintiff,

vs.

DERRICK LAMONT BEVERLY

Defendant

Case No.: **22STUD06657**

EMERGENCY EX-PARTE APP.

TEMPORARY STAY OF ENFORCEMENT;

ORDER SHORTENING TIME AND/OR OSC RE: VACATUR UNDER CCP § 473(d);

ADMINISTRATIVE DISCLOSURE ORDER TO THE JUDICIAL COUNCIL/ASSIGNED JUDGES PROGRAM;

ALTERNATIVE IMMEDIATE VACATUR IF NO VALID ASSIGNMENT IS SHOWN; AND ANCILLARY

INJUNCTIVE/EQUITABLE RELIEF (LACC § 8.52.090 et seq.; Civ. Code § 1940.2; CCP § 1179)

Date: October 24th, 2025
Dept. 91
Time: 1:30p.m

TABLE OF CONTENTS

1. Introduction and Summary of Relief
2. Statement of Urgency & Immediate Harm (CRC 3.1202(c))
3. Legal Authority
4. Requested Ex Parte Orders
5. Ex Parte Notice Declaration (CRC 3.1203–3.1204)
6. Declaration of Derrick LaMont Beverly (Key Facts)
7. Exhibits (PAJAR Emails & Supporting Documents) [Placeholders]
8. [Proposed] Order
9. Proof of Service

1. INTRODUCTION AND SUMMARY OF RELIEF

Defendant and Moving Party Derrick LaMont Beverly applies ex parte in this unlawful detainer action Fox Normandie Apartments, LP v. Beverly (Case No. 22STUD06657) for narrowly tailored, urgent relief to prevent continuing irreparable harm from a default judgment entered on or about November 29, 2022 and enforced by lockout on January 26, 2023. The judgment appears void or voidable under CCP § 473(d) because it was signed by a retired judicial officer without a case-specific, on-record assignment order under Cal. Const., art. VI, § 6(e) and Cal. Rules of Court, rule 10.700 et seq. (Assigned Judges Program). Public records and PAJAR correspondence to date have not produced a governing assignment order.

Given ongoing homelessness, reputational/credit injury from a UD judgment, and imminent loss of opportunities, status quo preservation is essential. The Court should (a) stay enforcement, (b) set an OSC re: vacatur with order shortening time, and (c) direct administrative disclosure from the Judicial Council/Assigned Judges Program (AJP). If the Court determines no lawful assignment existed, it should vacate the judgment forthwith and quash any writ.

2. STATEMENT OF URGENCY & IMMEDIATE HARM (CRC 3.1202(c))

Continuing Homelessness & Health Risk. The January 26, 2023 lockout left Moving Party unhoused, exposing him to health/safety risks and loss of medications, records, and personal property that money damages cannot promptly remedy.

Collateral Consequences from a Potentially Void Judgment. Each day the judgment remains of record exacerbates constitutional injury, stigma, and tenant-screening barriers.

Housing Access & Screening. The UD judgment is used by landlords/databases; every day forecloses time-sensitive housing opportunities.

Loss/Denial of Statutory Protections. Moving Party asserts violations of Los Angeles County relocation requirements (LACC § 8.52.110) and interference with Section 8 and Fair Housing Act protections.

Evidence Integrity & Administrative Accountability. Without interim relief, PAJAR/AJP records may be delayed or rendered practically moot before judicial review.

Public Interest. Transparent judicial assignment and lawful judgments are matters of systemic importance; minimal prejudice to Plaintiff is outweighed by severe harm to a self-represented litigant.

3. LEGAL AUTHORITY

- CCP § 473(d) (void judgments may be set aside); § 663 (alternative grounds).
- CCP § 1179 (equitable relief from forfeiture in UD).
- CCP § 128(a) (inherent powers to control proceedings, protect integrity).
- Cal. Const., art. VI, § 6(e); CRC rule 10.700 et seq. (AJP governance).
- CRC rule 10.500 (public access to judicial administrative records).
- LACC § 8.52.090–.130 (tenant protections, relocation); Civ. Code § 1940.2 (harassment).
- FHA, 42 U.S.C. § 3604; 42 U.S.C. § 1437f (federal housing protections).
- Civ. Code § 3294 (punitive damages; preserved for merits).

Moving Party also preserves federal claims and theories (including RICO-related theories under 18 U.S.C. § 1962(d)) for merits proceedings; these are not adjudicated on this ex parte. The question now is status quo preservation and administrative transparency.

4. REQUESTED EX PARTE ORDERS

A. Temporary Stay. Stay enforcement/collection/negative reporting based on the UD judgment pending hearing.

B. Order Shortening Time & OSC re Vacatur. Set an expedited briefing schedule and OSC under § 473(d) (and/or § 663).

C. Administrative Disclosure. Direct the Judicial Council/AJP to lodge, by a date certain, any assignment/appointment order(s), oaths, or authorizations for the retired judicial officer who signed the judgment—or certify nonexistence of such records.

D. Alternative Immediate Vacatur. If the record shows no valid assignment, vacate the judgment and quash any writ immediately.

E. Ancillary Protective Terms. Maintain the status quo; authorize email service and shortened time; prohibit interference with retrieval of personal property (Civ. Code § 1940.2).

5. EX PARTE NOTICE DECLARATION (CRC 3.1203–3.1204)

I, Derrick LaMont Beverly, declare:

1. When/How/To Whom: On Sunday, September 28th, 2025 at 12:15 a.m. PST., I provided notice of this ex parte application by e-mail to Plaintiff's counsel and ACOF (courtesy).
   - Plaintiff's counsel (per prior UD filings):

     Ada R. Cordero-Sacks, Esq. (SBN 240274)

     Law Offices of Ada R. Cordero-Sacks

     8399 Topanga Canyon Blvd., Ste. 304, West Hills, CA 91304

     Tel: (818) 343-0100 | Fax: (818) 343-0070

     Email: ada@loacs.com

     Email: assistant@loacs.com

     Associated names appearing on filings: Christopher L. Godinez (SBN 310599); Tracey L. Merrell (SBN 266704) (same address/phone).

   - ACOF courtesy notice:

     info@acof.com; HQ: 3701 Wilshire Blvd., Ste. 700, Los Angeles, CA 90010

Note: Holland & Knight (Daniel R. Golub) represented ACOF in unrelated CEQA matters; formal service to ACOF will be via agent for service of process per CA SOS bizfile until counsel appears.

2. Reason for Shortened/No Notice: Good cause under CRC 3.1204(b): irreparable harm will occur before a noticed motion; I exercised reasonable, good-faith efforts to give notice as early as practicable.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: September 27th, 2025

Signature: /s/ Derrick LaMont Beverly

6. DECLARATION OF DERRICK LAMONT BEVERLY (KEY FACTS)

1. I am the Defendant/Moving Party. I have personal knowledge of the facts stated herein.
2. On or about Nov. 29, 2022, a default judgment was entered against me in this case, later enforced by lockout on Jan. 26, 2023.
3. I was not properly served and had no meaningful opportunity to be heard prior to the judgment.
4. The judgment bears the signature of Hon. Debre K. Weintraub, believed to be a retired judicial officer. My PAJAR requests/correspondence have not produced a case-specific AJP assignment order authorizing her to act in this case, as required by Cal. Const., art. VI, § 6(e) and CRC rule 10.700 et seq.
5. I remain unhoused as a consequence of the lockout; I have suffered loss of property, records, medications, and severe screening barriers for new housing.
6. I request a temporary stay, OSC re: vacatur, and administrative disclosure from the Judicial Council/AJP; if no assignment existed, I request immediate vacatur and quashal of any writ.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: September 27th, 2025

Signature: /s/ Derrick LaMont Beverly

7. EXHIBITS (PLACEHOLDERS)

- Exhibit A: PAJAR Request(s) and Email Correspondence (screenshots or quoted text).
- Exhibit B: Docket/Minute Order(s) referencing the retired judicial officer's signature.
- Exhibit C: Proofs of Service/Notice irregularities (if any).
- Exhibit D: Evidence of homelessness/health impacts (declaration attachments).
- Exhibit E: Tenant-screening denials/credit reporting referencing the UD.
- Exhibit F: LACC § 8.52.110 relocation noncompliance materials.

(Attach exhibits with cover pages and electronic bookmarking as applicable.)

8. [PROPOSED] ORDER

[PROPOSED] ORDER GRANTING EX PARTE RELIEF

The Court, having considered Defendant's Ex Parte Application, supporting declarations, and exhibits, and good cause appearing, ORDERS as follows:

1. Temporary Stay: Enforcement, collection, and any negative reporting based on the UD judgment are **STAYED** pending further order.
2. OSC & Shortening Time: An OSC re: Vacatur under CCP § 473(d) is set for [date/time] in Dept. [__]. Moving/Opposition/Reply deadlines are shortened as follows: [schedule].
3. Administrative Disclosure: The Judicial Council/AJP shall lodge by [date] any assignment/appointment order(s), oath(s), or authorizations for the retired judicial officer who signed the judgment, or certify nonexistence of such records.
4. Alternative Immediate Relief: If the lodged materials do not demonstrate a valid assignment, the Judgment is **VACATED** and any writ is **QUASHED**, with parties restored to the status quo ante.
5. Ancillary Terms: Email service is authorized; parties shall not interfere with retrieval of personal property (Civ. Code § 1940.2).

IT IS SO ORDERED.

Date: September 29th, 2025

Judge of the Superior Court

9. PROOF OF SERVICE (E-MAIL)

October 29th

I am over 18 and not a party. On September 28th, 2025, I served the foregoing Ex Parte Application and supporting papers by e-mail to:

- Ada Rita Cordero-Sacks: ada@loacs.com (Law Offices of Ada R. Cordero-Sacks, counsel for Plaintiff Fox Normandie Apartments, LP)
- Assistant: assistant@loacs.com (Law Offices of Ada R. Cordero-Sacks, counsel for Plaintiff Fox Normandie Apartments, LP)
- A Community of Friends: info@acof.com (courtesy notice to A Community of Friends)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

October 29th

Date: ~~September 28th~~, 2025

Signature: /s/ Derrick LaMont Beverly

Address: 1738 N. Palmas Ave. Los Angeles, CA. 90028

(323) 387-6873